

2.

CASE #	CASE NAME	HEARING NAME
CVPS2401179	COHEN VS HUDSON INSURANCE COMPANY, A DELAWARE CORPORATION	MOTION FOR JUDGMENT ON THE PLEADINGS ON COMPLAINT OF KAREN LYNN COHEN

Tentative Ruling: Denied.

Court to provide notice.

Moving Defendant file their instant motion on June 5, 2026 seeking judgment on the pleadings as to 8th cause of action in the operative complaint filed March 1, 2024.

Plaintiff did not file an opposition, but did previously oppose advancing the instant motion based on the merits.

Judgment on Pleadings

A motion for judgment on the pleadings “may only be made on one of the following grounds: If the moving party is a plaintiff, that the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint.” (Code Civ. Proc., § 438, subd. (c)(1)(A).) Like a demurrer, a motion for judgment on the pleadings attacks defects disclosed on the face of the pleadings or by matters that may be judicially noticed. (*Alameda County Waste Management Authority v. Waste Connections US, Inc.* (2021) 67 Cal.App.5th 1162, 1173-1174.) A motion for judgment on the pleadings is similar to a demurrer in most respects. (Ibid.) Except as provided in the statute governing motions for judgment on the pleadings, the rules governing demurrers apply. (Ibid.) “There are some differences between a motion for judgment on the pleadings and a demurrer. Unlike a demurrer, a plaintiff may move for judgment on the pleadings on the ground ‘that the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint.’ Where a plaintiff brings such a motion, we assume the defendant could have proven all of the factual allegations in its answer.” (Id. at p.1174, internal citations omitted.) “In evaluating the sufficiency of the challenged pleading, we accept all material facts pleaded and those that arise by reasonable implication, but not conclusions of fact or law. Finally, a party moving for judgment on the pleadings must make it no later than 30 days prior to the initial date set for trial (Code Civ. Proc., § 438(e).)

Here, initial trial was originally set for April 24, 2026. The instant motion was filed on June 5, 2026. The motion is untimely.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2503849	AGUILAR VS CERVANTES	MOTION FOR INTERLOCUTORY JUDGMENT OF PARTITION AND APPOINTMENT OF PARTITION REFEREE

Tentative Ruling: Denied without prejudice.

No opposition filed.

Moving party has not submitted a proposed referee on the matter.

Court to provide notice.